Has our increasingly paranoid society declared war on the humble 'weekend snapper'?

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An amateur photographer is chased by the police after taking pictures on the seafront; another man is frogmarched away when using his camera in a town centre. Since when did carrying a camera in public provoke so much suspicion and hostility? Sam Delaney reports. Illustration by Ulla Puggaard

It's 11 am one Saturday in Putney, south-west London. I carry my cappuccino to a window seat in a poky branch of a high street coffee chain, take off my jacket, unzip my rucksack and pull out the camera I've just borrowed from a friend. It's a rugged, 1980s vintage Pentax SLR. This was made back when cameras really were cameras. It has knobs and dials and a fancy lens that you actually have to focus yourself.

It's big and heavy and complicated. As I sit familiarising myself with this new toy, I sense suspicious glances from the people sitting beside me. I tell myself I'm probably just imagining it. I hold the camera up to my face, point the lens through the window at the busy street outside and peer through the viewfinder. The first thing I see is a large, bearded, angry-looking middle-aged man thrusting two fingers in a V-sign at me. Shocked, I lower the camera and look at him with my own naked eyes. He points at the camera, mouths an expletive and walks away, flicking me the V's once last time for good measure. I look at the man sitting next to in the coffee shop, aghast. 'Did you see that?' I ask.

'What do you expect?' he shrugs. 'People don't like having cameras pointed at them.' He gets up and leaves.

Twenty minutes later I take a stroll through the local shopping arcade. The camera is hung round my neck with the lens cap on. 'Excuse me sir, have you been taking photographs in here?' says a security guard who has suddenly appeared beside me. 'No. But I might do in a minute,' I reply.

'Well I'm afraid I'll have to ask you not to,' he says. 'It's not allowed. This is private property.'

'Is taking photographs here against the law?' I ask.

'I think so,' he says. 'Either way, it has a negative impact on business so we can't allow you to do it.' He's polite but firm. He wants the camera back in the rucksack immediately or I'll have to leave.

In the space of my first half hour as an amateur photographer, I have learnt nothing about taking pictures. But I have learnt that carrying a camera around in public provokes immediate suspicion and a little bit of hostility. Was I just unlucky? Did the people of Putney simply object to the cut of my jib? It would seem not. Across the globe, casual snappers are experiencing similar problems. There's the amateur photographer confronted at a subway station in LA after being told by a misinformed station guard that he was 'breaking the 9/11 Law.' There's the protests taking place in New York against the proposed ban on photography in train stations. There's the Melbourne shopping centre and tourist attraction that banned photography in order to 'stop terrorism.'

There's even a story about a man who was visited at home and interrogated by FBI agents after being spotted taking photographs at the Port of Los Angeles. The internet is home to a fast-growing, worldwide community of photographers who feel their hobby is being gradually outlawed by an increasingly paranoid society. But the photographers from America, Canada, Australia and beyond all seem to agree on one thing: nowhere is the situation worse than in Britain. 'London Cops Declare War on Photography,' reads one headline on BoingBoing.com, a website at the hub of the issue. The accompanying story features the Metropolitan Police's recent poster campaign, which invited members of the public to report suspicious-looking photographers. 'Thousands of people take photos every day,' shouted the poster. 'What if one of them seems odd?' The accompanying copy begins with the statement: 'Terrorists use surveillance to plan attacks.' With British authorities emphasising the link between photographers and terrorism, it's little wonder that cameras have suddenly become an unwelcome sight on our streets.

When Graham Rigg heard the wailing sirens and saw the flashing blue lights of the police car in his rear-view mirror he pulled over to let it pass. But when it performed a spectacular handbrake turn beside him, hemming his vehicle in, he realised it was him they were after. His mind raced: was it something about his driving? Was his tax disc out of date? Even if it was, why were the police hunting him down so dramatically? An officer got out of the car and called out to Rigg: 'Switch off your engine and get out of the car slowly.' The traffic on the South Shields one-way system slowed to a crawl as drivers watched the spectacle. 'I felt

like some sort of terrorist,' Rigg remembers. Had the war on terror really come to this ordinarily quiet North-Eastern town? And if it had, why was this 51-year-old father and Neighbourhood Watch chairman its latest target? As Rigg tentatively approached the police officer, the picture started to become slightly clearer. 'They told me to get my equipment out of the boot,' he tells me. 'They somehow knew I had a camera and they wanted to look at my pictures.'

The police were responding to a 999 call from someone who claimed to have seen Rigg taking photographs in a public park earlier that afternoon. They had tracked him from a control centre on a series of CCTV cameras before sending the squad car out to apprehend him. It was true that Rigg had spent the afternoon taking pictures - for his blog - but he had been at the seafront and nowhere near a public park. The police were uninterested in his protestations. 'I showed the officer the pictures on my camera's viewfinder in the interests of bringing the matter to an end,' he says. 'It was just some shots of the sea wall and some blurred snaps of the fairground rides. No one had been around because it was hailing that afternoon.'

Shaken, confused and embarrassed by the incident, Rigg was eventually given back his camera and allowed to go home. It wasn't until later that day that he reflected on the experience and began to feel angry. 'Even if I had been taking pictures in a public park, what gives them the right to track me across town on CCTV and fly into full emergency mode?' he says. 'It became clear that they suspected me of being a paedophile just because I was taking pictures in public. But why didn't the person who called 999 take the time to approach me first and ask what I was doing? The notion of presumed innocence seems to have disappeared. So has the notion of neighbourliness - everyone seems to be living with this irrational fear of paedophiles and terrorists.'

Rigg's analysis might seem sweeping and exaggerated. But his is just one of a number of similar cases that have been reported by photographers across the UK in recent months. Maybe it really is the growing fear of terrorism and paedophiles. Maybe it's an intensifying climate of authoritarianism on the streets of Britain. Or maybe it's just cack-handed policing. Whatever the reason, it seems that if you dare to take the odd snap in a public place these days, you're asking for trouble.

There is no law in this country that prevents people from taking photographs in public. None the less, Amateur Photographer magazine receives dozens of reports per month from readers who have been stopped and searched by police officers who seem to think otherwise. 'Sadly,

many amateurs are not aware of their rights and are resigned to their fate,' says the magazine's news editor Chris Cheesman. 'Once they are stopped, and their name taken, the police have a record. And we only hear about those who are prepared to kick up a stink about it - there are sure to be many others that go unreported.'

Last November, Phil Smith, 50, went to see the Christmas lights switched on in Ipswich Town Square. Keen to get a snap of Letitia Dean, the EastEnders actress who was scheduled to perform the ceremonial duties, he began to take preliminary shots of the stage. Almost immediately, he was approached by a police officer ordering him to stop.

'I asked her why and she said it was because I was taking pictures of the crowd,' he says. 'I offered to show her the monitor on the back of my camera to prove I wasn't up to anything. Then she demanded to see a licence. That was a new one on me!' Soon, another PC arrived on the scene and asked him to step out of the crowd. He was led through a set of barriers and along the front of the crowd, flanked by the officers. 'I felt a bit daunted by this stage,' says Smith. 'I had friends in the crowd and I kept wondering what they must have thought.'

He was led down an alley where the officers demanded to see his photographs. 'I was dumfounded, scared,' he recalls. 'I offered to delete the photos which, I now realise, I needn't have done. But I just wanted them to leave me alone.' Eventually, he was told to put his camera equipment in his car; but he decided to go home. 'I just felt embarrassed and didn't want to be there anymore. Everyone had seen me being led away by the police and I thought they were judging me. People are quick to jump to conclusions.'

Smith eventually received an apology from Suffolk police force. But the exact reason why he was stopped never became clear. It seems that many police are willing to use stop-and-search powers on a whim - and complicit members of the public are often penalised for their co-operation. A Home Office statement on the issue says: 'The police may remove persons from public areas, prevent filming or confiscate equipment where they are responding to an offence or where they suspect an offence is about to happen in order to prevent it from being committed.' None of which seems to justify Phil Smith's experience in Ipswich town square. The statement adds: 'The police may require a person to leave a place… where their presence is likely to cause a breach of the peace. Police tactics and decisions on how to achieve these objectives are a matter for the independent judgement of chief officers of police.'

It's a vague position that leaves police officers with a dangerously wide scope for interpretation. The Association of Chief Police Officers (Acpo) is unequivocal on the matter:

'Police officers may not prevent someone from taking a photograph in public unless they suspect criminal or terrorist intent,' they say in a statement. 'Their powers are strictly regulated by law and once an image has been recorded, the police have no power to delete or confiscate it without a court order.' Clearly, the officers who pulled Phil Smith out of Ipswich's Christmas crowds were unaware of this. Smith, like many others, was too shaken and disorientated to query the officers' demands.

The only law under which such a random search could be justified is the Terrorism Act of 2000. This states that police officers may stop someone without reasonable suspicion providing the area has been designated a likely target for an attack. As unlikely a target as Letitia Dean might seem, the Christmas event in Ipswich probably demanded extra security measures. Even so, Acpo has clear guidelines on how to conduct a random stop and search: 'Officers are required by law to justify their actions to any individual they stop, citing: identification; the law under which they are stopped; and the reason for the search.'

Smith received no such justifications. And although Suffolk police later explained his experience as a mistake by misguided officers, the number of similar cases suggests a more widespread, and perhaps more sinister, problem. When 53-year-old financial director Stephen Carroll was stopped by two police officers in Hull city centre in the same month as Smith, he too was hoodwinked into handing over his equipment. 'One of them told me to give him my film so he could have it developed and examine the pictures,' he says. 'I asked him if I was obliged to hand it over and he just kept repeating "I'm taking the films from you," as if I had no choice in the matter.'

Carroll had been visiting relatives in the area. A keen photographer, he had taken his camera with him on a Saturday morning shopping trip to take some shots of the high street. He was in Boots with his brother and sister-in-law when he was confronted by the police, who told him they had received a complaint from a member of the public that he had been taking pictures of 'sensitive buildings'. 'I was marched out of the shop, stood against the wall and made to empty my pockets,' he says. 'I was scared and intimidated. I mean, I'm one of the most law-abiding citizens you could meet. I don't even drop litter! I shouldn't really have handed over the film but, at the time, I was afraid of being arrested.'

The police had the film developed and returned the pictures to him later that day, acknowledging that they were entirely innocuous. They also admitted that there had been no complaint from the public; they had stopped Carroll because they thought he was taking pictures of children. Carroll lodged a complaint with the local station. 'The superintendent at

Humberside police got in touch and was very sympathetic. But he still claimed that his officers had behaved correctly and at times of heightened security we have to accept less freedom for our own good.'

But as the officers had already admitted, Carroll was never under suspicion of terrorism. It appears that some police are happy to use the terror threat as a justification for heavy-handed conduct. 'The growing concern about paedophiles coupled with concerns about terrorism is a heady cocktail that makes police officers edgy,' says Labour MP Austin Mitchell - a keen photographer who was once stopped from taking pictures on a beach on the grounds that there were children present. 'I didn't see any children and none were in my pictures,' he says. 'In any case, they are the responsibility of their parents, not me.'

Mitchell has tabled an Early Day Motion condemning police actions against lawful photography in public places, and this summer he will lead a delegation of photographers and fellow MPs to the Home Office to demand greater clarification of the laws. 'We are watched by the state on CCTV more than ever and yet they are simultaneously stopping us from taking happy snaps on the street. It's a bit daft when they're trying to attract tourists to the country,' he says. 'I think it's part of a culture where people aren't allowed to do things unless they're specifically authorised to do so. I think it should be the other way round.'

Added to this general sense of suspicion and paranoia is the growing presence of inexperienced community support officers on the streets. In February of this year, John Kelly, a 55-year-old sales executive, was stopped by a support officer in central Blackpool on the grounds that he was 'acting strangely.' 'I was taking pictures for a council photographic competition called Blackpool Life', he says. 'I saw the officer in her neon yellow jacket and though it was an interesting shot. But as soon as I'd taken it she came running across the street at me, saying I couldn't take pictures of her without permission. Then she told me to delete the picture, so I did. I knew she was wrong but I was embarrassed and wanted to get away. Shoppers were starting to stop and stare. She also demanded to see some ID to prove I was a photographer. I tried to tell her I was just an amateur. It became clear she didn't understand the law.'

Kelly was distressed by the incident and has since stopped taking photographs in public. He decided against entering the Blackpool Life competition. 'I was treated like a shoplifter just because I'd been taking a few snaps,' he says. 'I collected my Veterans Badge the other day because I'm an ex-military man. And yet there I was being pushed around by someone in a yellow jacket who wasn't a real police officer and didn't seem to understand the law.'

Vague laws being enforced by inexperienced officers makes for a dangerous combination. But while officers can be given clearer directives and stricter guidelines, it might be harder to calm the fears of an increasingly sensitive general public. 'I think the public are suspicious of people with cameras and the police sympathise with them,' says Stephen Carroll. 'It seems that if you take a photo on the street you are immediately suspected of being a paedophile and I find that unacceptable.'

It's not just police officers who have been swept up in this climate of fear. In May of this year, Louis Berk, a teacher from north London, was angrily confronted by security guards while taking pictures near the 2012 Olympic site in Stratford. 'None of them bothered to show ID,' he complains. 'Three of them were dressed in yellow T-shirts with walkie-talkies while a fourth was dressed in black from head to toe like someone out of the SAS. It was all a bit over the top.' Berk and a friend protested that they had not been taking pictures of the site, but the guards demanded to see their cameras in order to check.

'They were very aggressive,' he says. 'They wanted our ID and our cameras. When I pointed out that we were on a public path and they were out of their jurisdiction they said "You must be a professional if you know all the rules!" Eventually, Berk succumbed to their demands. 'I got nervous because there were four of them and two of us, and if it turned nasty it would have been their word against ours,' he says. 'I was offended by the way they treated us. We are a couple of respectable-looking middle-aged men. We didn't swear or shout throughout the incident but they were rude and aggressive towards us. I shouldn't have showed them the pictures but I was intimidated into it.' The Olympic Delivery Authority have since apologised to Mr Berk and conducted a review of the incident in a bid to avoid any sort of repeat.

It's unlikely that Louis Berk was the victim of an elaborate conspiracy on behalf of an authoritarian state. It's more probable that he, like Graham Rigg, Phil Smith, Stephen Carroll and John Kelly, was the victim of overblown jobsworths making the most of the authority they had been granted. But that, in itself, is a growing and troubling trend.

'Arbitrarily searching tourists and photographers in central London is not going to uncover a terrorist plot, but it will intimidate and upset innocent people,' points out Alex Gask from the pressure group Liberty.

The need for heightened security in public places appears to have spawned an unsavoury form of legitimised bullying and fear - and at the moment it's the humble weekend snapper who is bearing the brunt. 'I am sympathetic to the need for greater vigilance these days,' says

Louis Berk. 'But singling out amateur photographers seems a bit unfair. To be honest, most of us are just sad anoraks who are no threat to anyone!'

How we moderate

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